

AUTO RITE IT

PERSONAL DATA

The Minister of Social Affairs and Employment

P.O. Box 90801

2509 LV The Hague

Date

Our reference

July 10, 2023

z2023-02680

Contact person

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Subject

Data Protection Authority

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Your letter of

May 8, 2023

Your reference

2023-0000235772

Request for advice on draft legislative proposal for the introduction of a reporting obligation for workplace accidents and due diligence obligations for lenders

Dear Ms. Van Gennip,

In a letter dated May 8, 2023, the Data Protection Authority (AP) was consulted pursuant to Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR) regarding the draft amendment to the Working Conditions Act aimed at increasing the responsibility for safe and healthy work of those who make an employee available to an employer for the performance of work, and to introduce a reporting obligation to the supervisory authority for those who make an employee available regarding reportable workplace accidents of which they are aware, as well as due diligence obligations to ensure that the employee made available can work safely (Law on the Introduction of Reporting Obligations for Workplace Accidents and Due Diligence Obligations for Lenders) (hereinafter: the draft).

The AP has examined whether the draft concerning the processing of personal data is in accordance with the Charter of Fundamental Rights of the European Union (EU), the general legal principles of the EU, the GDPR, and other relevant law, whereby it must be sufficiently demonstrated that, among other things, the principle of proportionality is met, by:

1. The draft is suitable for achieving the pursued objective of general interest or the requirements of protecting the rights and freedoms of others (suitability);
2. The objective cannot reasonably be achieved as effectively by other means that are less intrusive to the fundamental rights of the individuals concerned (subsidiarity);
3. The interference is not disproportionate to that objective, which particularly implies a weighing of the importance of the objective and the severity of the interference (proportionality);
4. The draft is sufficiently clear and precise regarding the scope and is predictable in its application (legal certainty);
5. The draft sufficiently indicates under which circumstances and conditions personal data may be processed, thereby providing safeguards for the protection of personal data (substantive and procedural safeguards); and
6. The draft is binding under national law.

The AP has objections to the draft that particularly focus on the suitability of the dual reporting obligation (point 1 of the assessment framework) and (the substantiation of) the legal certainty and binding nature of the draft (points 4 and 6 of the assessment framework) and advises against continuing the procedure unless these objections are resolved.

Scope of the draft

In several sectors, there is significant use of temporary workers. The temporary worker is employed by an employer (hereinafter also referred to as the "lending employer," usually a temporary employment agency), which makes the temporary worker available to another employer (hereinafter also referred to as the "borrowing employer"). Research by the Labor Inspectorate shows that a relatively high number of workplace accidents occur among temporary workers. In 2021, 17 percent of the victims of accidents investigated by the Labor Inspectorate were temporary workers, while the share of temporary workers among all employees was only 7 percent.

Under the current legislation, only the borrowing employer has a role in reporting fatal workplace accidents or accidents that result in permanent injury or hospitalization (reportable workplace accidents). Furthermore, only the borrowing employer is required to check before the start of work or after a reportable accident whether the necessary measures have been taken to ensure safety and health at the borrowing employer.

The draft aims to improve the working conditions of temporary workers by tightening the responsibility and duty of care in the context of good employer practices of the lending employer towards the temporary worker. To this end, the draft obliges lending employers to report reportable workplace accidents to the Labor Inspectorate and to ensure before the start of work that the workplace where the temporary worker will be working is safe, and that the workplace is safe enough after a workplace accident. The due diligence obligation must be fulfilled by the lending employer by maintaining a file that shows that they have inquired about the information provided to the temporary worker before the start of work or after a reportable workplace accident.

1 The AP uses the term "temporary worker" for the sake of readability in this advice. This term encompasses all employees who are made available by a lending employer to a borrowing employer.

2 Labor Inspectorate, Monitor Workplace Accidents 2021, p. 4.

3 The obligation to ensure the best possible working conditions lies with the employer where work is performed (Article 3 of the Working Conditions Act), see p. 7 of the explanation.

4 Part C of the draft.

5 Parts A and B of the draft.

6 Parts A and B of the draft.

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Advice

Special Personal Data

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Based on the draft, lending employers must report reportable workplace accidents to the Labor Inspectorate. Neither the draft nor the explanation indicates which personal data must specifically be processed by the lending employer for the relevant report. The AP considers it equally inevitable that health data of the temporary worker will be provided. Both by the hiring employer to the lending employer, and by the lending employer to the Labor Inspectorate.

Health data is classified as special personal data. It is prohibited to process special personal data unless an exception can be invoked. The explanation does not specify whether the hiring and lending employers can base the processing on an exception to the processing prohibition. Without this clarification, the draft is in violation of the GDPR (point 6 of the assessment framework) and the principle of legal certainty (point 4 of the assessment framework).

The AP advises that the explanation should substantiate which exception to the processing prohibition the hiring and lending employers can rely on for the provision of health data.

Double Reporting Obligation

The draft obliges hiring employers to report a reportable workplace accident to the lending employer, in addition to the existing obligation to report reportable workplace accidents to the Labor Inspectorate, so that the lending employer can also report the workplace accident to the Labor Inspectorate. Personal data must be relevant and limited to what is necessary for the purposes for which they are processed ("minimal data processing"). The processing must also comply with the requirements of suitability, proportionality, and subsidiarity.

The AP estimates that it can be expected that hiring employers who do not report reportable workplace accidents to the Labor Inspectorate under current law will also not do so after the introduction of the double reporting obligation. Logically, these employers will also not report these workplace accidents to the lending employer. After all, these lending employers will report the accident to the Labor Inspectorate, after which the Labor Inspectorate will become aware that the hiring employer did not report an accident (incorrectly). If the AP understands correctly, the reporting obligation of the lending employer can only contribute to the objective of the draft (to combat underreporting) in those cases where the lending employer discovers, outside of the hiring employer, that a reportable workplace accident has occurred. For example, through a signal from the employee themselves. The double reporting obligation may not be suitable to achieve the objective of the draft (point 1 of the assessment framework).

The AP advises to justify the suitability/effectiveness of the measure, and to adjust the draft so that:

- the hiring employer can suffice with sending proof to the lending employer that the reportable workplace accident has been reported to the Labor Inspectorate.
- the lending employer only needs to report a reportable workplace accident if the lending employer becomes aware of an apparently unreported workplace accident in another way.

Workload

The AP notes that the draft is not expected to necessitate additional effort by the AP.

Publication of the Advice

The AP intends to make this advice public only after four weeks on the website www.autoriteitpersoonsgegevens.nl. Unless otherwise notified, it assumes that there are no objections to this.

Sincerely,
Authority Personal Data
Aleid Wolfsen
Chairman